

PLUGANDPLAY

General Mills, Inc.

Ecosystem Corporate Membership
Agreement
Supply Chain
Northwest Arkansas

This Corporate Membership Agreement (“Agreement”) is made effective as of May 01, 2023 (“Effective Date”), by and between General Mills, Inc. and its affiliates, whose principal office is located at 1 General Mills Blvd, Minneapolis, MN United States, 55426 (hereinafter “CLIENT”) and Plug & Play, LLC (also doing business as “Plug and Play Tech Center”) whose principal office is located at 440 North Wolfe Road, Sunnyvale, CA 94085, United States (hereinafter “Plug and Play”). Plug and Play and CLIENT hereinafter jointly referred to as the “Parties” and individually to as the “Party.”

1. The Scope of the Agreement

1.1. CLIENT is seeking a deeper engagement with Plug and Play to drive business growth opportunities for CLIENT through partnership, pilots, acquisition, or investment in startups and establish CLIENT as an innovation leader in the Supply Chain space. To ensure CLIENT’s success as a strategic member of Plug and Play’s ecosystem, Plug and Play will provide the services described in this Agreement.

1.2. Ecosystem Membership—Plug and Play Supply Chain

1.2.1. The execution of the Agreement will grant CLIENT a status of “Ecosystem Member” of Supply Chain at Plug and Play Northwest Arkansas

1.2.2. As an Ecosystem Member, CLIENT will pay the fees described in **Exhibit A** and benefit from the services listed in Section 2.

2. Ecosystem Benefits—Plug and Play Supply Chain

Plug and Play accelerates up to two batches of startups per year (each, a "Batch") and provides workshops, mentorship sessions, EXPOs, business development, and investment opportunities to CLIENT in the Supply Chain industry (the "Program"). As an Ecosystem Member, CLIENT will receive the following:

2.1. Sourcing and Startup Introductions

2.1.1. Private Dealflow Sessions: Plug and Play will facilitate private introductions between CLIENT and startups based on CLIENT's business challenges. These connections are made through "Dealflow Sessions"—up to six per Segment. Dealflow Sessions are structured as follows:

- a)** CLIENT shall provide Plug and Play notice of its intention to participate in a Dealflow Session. Plug and Play will, within four weeks of receipt of such notice, deliver a pre-screened list of startups to CLIENT and allow CLIENT to select up to eight startups it wishes to meet. Of the eight startups chosen by CLIENT, Plug and Play will arrange for CLIENT to meet (virtually or in-person) up to four startups during a two-hour Dealflow Session.

- b)** Each of the selected startups will present to CLIENT for 30 minutes followed by open discussions between startups and CLIENT.
- c)** If CLIENT or any of its employees, contractors or representatives are unable to attend the Dealflow Session in person, Plug and Play will arrange a virtual or extended Dealflow Session to accommodate CLIENT's schedule.

2.1.2. Ad-Hoc Introductions: Plug and Play will make ad-hoc introductions between CLIENT and startups as new opportunities arise during the Term (defined in Exhibit A: Fee Schedule).

2.1.3. Playbook: During the Term, CLIENT may access Plug and Play's proprietary virtual platform called "Playbook". Playbook allows corporate members to easily track engagement with startups and includes a database of startup profiles, exclusively for Plug and Play's corporate members' use. CLIENT's representatives that wish to use Playbook must first create a profile on the Playbook platform, but there is no limit on the number of CLIENT representatives who may use Playbook.

2.2. Events & Workshops

CLIENT's marketing and business development representatives are invited to participate and promote CLIENT's brand and products at all Supply Chain events and workshops. There is no limit on the number of CLIENT representatives who may participate. Plug and Play will provide:

2.2.1. EXPOs: "EXPO" takes place at the conclusion of each Batch, either in person or virtually. Each EXPO includes three-minute presentations from the startups in each Batch, panelist discussions and keynote speeches focused on the Batch. Attendees of each EXPO includes entrepreneurs, venture capitalists, Plug and Play corporate members, developers, investors, government entities, and universities. CLIENT may send representatives to attend EXPO.

2.2.2. Mentorship Sessions: During the course of each Batch, Plug and Play hosts weekly, one to two hour mentorship sessions with startups, hosted by either a venture capitalist or corporate member. When applicable, CLIENT will have the opportunity to demonstrate and promote their technology focus areas and engage closely with startups.

2.2.3. Internal Meetings: CLIENT's representatives are welcome to attend Plug and Play's regular internal meetings during the Term, including monthly events covering the latest trends in the Supply Chain industry.

2.2.4. Friday Pitch Sessions: The Friday Pitch Sessions ("FPS") provide a platform for startups to interact with corporate executives, serial

entrepreneurs, and investors at the Silicon Valley location every Friday. The four weekly, themed FPS meetings include: Money tech, Hard tech, Health tech, Software tech. CLIENT may attend any FPS either virtually or in-person.

- 2.3. Community, Branding, and Marketing. If the parties decide to issue a press release announcing the collaboration, CLIENT and Plug and Play will work together to submit such press release, which is subject to the final approval of both parties.

3. Authorization for use of Name, Trademark(s), Logo(s) and other Identifying Marks

- 3.1. With the approval of CLIENT prior to each event where CLIENT is present, Plug and Play may use CLIENT's logo and trademarks (the "Marks") in event materials, including, but not limited to, event room screens, event programs, and pop-up banners.
- 3.2. In any other instance, Plug and Play will ask for written permission from CLIENT, which permission shall be given by CLIENT in its sole discretion. The request for permission and the grant of permission may be delivered and received via email. CLIENT shall retain all and any intellectual property rights, title or interest in or to any of the Marks used by Plug and Play.
- 3.3. CLIENT may use and publish Plug and Play's name, logo and trademarks ("Plug and Play Marks") in its marketing and promotional material with Plug and Play's prior written consent. For the avoidance of doubt, Plug and Play shall retain all and any intellectual property rights, title or interest in or to any of the Plug and Play Marks used by CLIENT.

4. Intellectual Property

- 4.1. Plug and Play shall own no right, title and interest in and to all intellectual property created by CLIENT and a technology startup company introduced to CLIENT through the services provided by Plug and Play in connection with this Agreement, including without limitation, all logos, trademarks, names, ideas, concepts, creative materials, promotional materials, advertising, and graphics, including all copyrights and proprietary rights therein, and any inventions and discoveries first conceived or developed, whether or not protected by patent, trade secret or copyright.
- 4.2. If Plug and Play and CLIENT desire to develop jointly any intellectual property during the Term, then the Parties shall execute a separate development agreement prior to starting any such development. The development agreement shall include, among other things, the Parties' mutual understanding about ownership of any developments.

5. Confidentiality

- 5.1.** While involved the Parties will be exposed to certain valuable confidential information that each deems confidential (hereafter the “Confidential Information”). This Confidential Information includes, but is not limited to, trade secrets, processes, studies, statistics, writings, files, procedures, business plans, marketing plans, business records, financial information, methods and techniques, customer and client lists, business contact list, intellectual property, and any and all information related to each Parties respective business. For the avoidance of doubt, Confidential Information also includes the terms of this and any Agreement Client has with Plug and Play, including terms and pricing, etc. The Parties understand that each has invested substantial effort into developing this Confidential Information. Because unauthorized disclosure of the Confidential Information would irreparably damage the Parties, each agree to keep any information learned confidential. Parties agree that they shall not disclose, market, develop, or cause to be marketed the other Party’s Confidential Information without prior written consent. Business decision and discussions regarding the internal business matters of Plug and Play are confidential and not public information. Moreover, information and resources that are developed or obtained during our affiliation shall automatically become a trade secret of both Parties. Such information shall be used only to benefit of each Party. This confidentiality provision shall survive the termination of this Agreement, and shall last in perpetuity.
- 5.2.** The obligations set forth in the section above shall not apply to any Confidential Information with respect to which each Party can demonstrate:
- 5.2.1.** was in its possession prior to the time of disclosure by the disclosing Party hereunder and was not acquired directly or indirectly from the other Party
 - 5.2.2.** was in the public domain at the time of disclosure, or subsequently became part of the public domain through no fault of the receiving Party; or
 - 5.2.3.** was legally received from a third party who represents in writing that it was not subject to a confidentiality agreement regarding the information.
- 5.3.** All Confidential Information disclosed by the disclosing Party under this Agreement, whether in a tangible form (including, without limitation, information incorporated in computer software or held in electronic storage media) or during all and any oral communication, shall be and remain property of the disclosing Party.

6. Indemnity

Each Party shall defend, indemnify and hold harmless the other Party, its parents, affiliates, and each of their respective directors, officers, employees, shareholders and all of their respective successors and permitted assigns (the “Indemnified Parties”), from and against any and all suits, claims, actions, liabilities, losses, damages, costs and expenses (including,

but not limited to, interest, penalties, reasonable attorneys' fees and other expenses of litigation) and causes of action of whatsoever kind (collectively referred to as "Claims") which may be incurred by, asserted against, or recoverable from any Indemnified Party arising out of or relating to any of the Services performed or accepted by each Party under this Agreement

7. Limitation of Liability

Except for the indemnification obligations above and except for a breach of the confidentiality obligations above, the liability for either Party under this Agreement shall be limited to the total amount of fees paid by Client to Plug and Play.

8. Term and Billing

See **Exhibit A: Fee Schedule** attached to and incorporated in this Agreement for details.

9. Relationship of the Parties

Neither Party is, nor represents itself to be, an agent, employee, partner or joint venture of the other Party. Neither Party shall, unless otherwise specified in this Agreement or in a writing signed by both Parties, make promises, representations or warranties that incur any liability for or on behalf of the other Party. The relationship of the Parties is non-exclusive unless otherwise specifically agreed to in writing by the Parties.

10. Notices

Any notices given under this Agreement shall be in writing to the following addresses:

Plug & Play, LLC
Attention:
Address: 440 North Wolfe Road,
Sunnyvale, CA 94085
Email:

General Mills, Inc.
Attention:
Address: 1 General Mills Blvd, Minneapolis,
MN 55426
Email:

11. Severability

If any provision of this Agreement shall be held to be invalid or unenforceable for any reason, the remaining provisions shall continue to be valid and enforceable. If a court or judicial authority finds that any provision of this Agreement is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision shall be deemed to be written, construed, and enforced as so limited but only to the minimal extent required to make the provision valid and enforceable.

12. Entire Agreement

This Agreement, together with all Exhibits referenced herein (a) constitutes the entire Agreement between the Parties regarding this specific subject matter; (b) is the complete and exclusive statement of the terms thereof; and (c) it supersedes all prior oral or written agreements between the Parties with respect to this specific subject matter. Any modifications to the terms of this Agreement must be in writing and signed by an authorized representative of each Party.

13. Force Majeure

Neither Party shall be liable for any delays in performance hereunder due to circumstances beyond its control including, but not limited to, acts of nature, acts of governments, delays in transportation, and delays in delivery or inability of suppliers to deliver. CLIENT shall have the option to terminate any and all obligations under this Agreement by so notifying Plug and Play in writing if the delay in performance exceeds 30 days from the originally agreed upon performance date.

14. Choice of Law

This Agreement shall be interpreted and enforced according to the applicable federal laws of United States of America and the state laws of New York without application of its conflict of law or choice of law rules.

15. Assignment

This Agreement shall bind and be for the benefit of the Parties and their heirs, fiduciaries, and permitted successors and assigns. Neither Party may assign its rights or delegate its obligations under this Agreement, except to a present or future affiliate upon written notice to the other Party.

16. Representations and Warranties

The Parties executing this Agreement on behalf of Plug and Play and CLIENT represent and warrant that they have the authority from their respective governing bodies to enter into this Agreement and to bind their respective companies to all the terms and Conditions of this Agreement.

17. Other

Neither Party's failure to insist upon strict performance of any provision of this Agreement will be construed as a waiver of any of its rights hereunder. This Agreement may be signed in counterparts, which together shall be one contract. Faxed or scanned signatures will be treated as original.

(Signature page follows)

Acknowledged, Accepted and Agreed:

Plug & Play, LLC

General Mills, Inc.

Represented by:

Josh Saffran

Name: Josh Saffran

Title: Director

Date: 02 May 2023 | 11:22 AM CDT

Represented by:

Jude LaRenzie

Name: Jude LaRenzie

Title: Sr Manager, Corporate Strategy • Strategy Development

Date: 02 May 2023 | 7:49 PM CDT

Exhibit A: Fee Schedule

Description of Work	Segment Amount	Segment Term
Ecosystem Membership (Supply Chain) - Segment 1	\$150,000.00	Start Date: May 01, 2023 End Date: May 31, 2024
Ecosystem Membership (Supply Chain) - Segment 2 (Optional)	\$150,000.00	Start Date: June 01, 2024 End Date: May 31, 2025 (Optional)

Term, Billing, and Tax:

The term of this Agreement shall commence on the Effective Date and shall continue until May 31, 2024 (the “Term”), unless earlier terminated as provided herein. The period of time between May 1, 2023 through May 31, 2024 will be a “Segment.”

The parties agree that CLIENT shall be given a one-month trial membership at no cost from May 1, 2023 through May 31, 2023 (the “Trial”) as part of Segment 1. CLIENT may terminate this Agreement following the Trial with no further obligation to Plug and Play by providing written notice to Plug and Play at least three (3) days prior to the end of the Trial (e.g., by May 28, 2023). Following Segment 1, this Agreement may renew and extend the Term for an additional 1-year term (Segment 2) upon the mutual written agreement of the parties no later than 60 days prior to the end of the then-current Term.

Plug and Play will invoice CLIENT \$150,000 on (i) June 1, 2023 for Segment 1. If the parties agree to renew this Agreement for Segment 2, Plug and Play will invoice Client \$150,000 on June 1, 2024 for Segment 2. Payments made under this Agreement are made in advance and are not refundable unless due to a breach of this Agreement by Plug and Play. CLIENT shall pay Plug and Play no later than 90 days after receipt of an invoice from Plug and Play.

All amounts payable under the Agreement are exclusive of any taxes or other government charges incurred by Plug and Play as a result of provision of the services to CLIENT pursuant to the Agreement. CLIENT will pay any and all (a) sales, use, excise or other taxes (other than taxes measured on the income of Plug and Play) and (b) regulatory fees or surcharges of all governmental authorities, applicable to the services provided to CLIENT under this Agreement.